

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**SUPPLEMENTAL JUDICIAL NOTICE OF PROCEDURAL
ENTRENCHMENT AND APPEARANCE OF BIAS IN SUPPORT OF
RENEWED MOTION TO DISMISS**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully submits this Supplemental Judicial Notice to place on the record two procedural episodes that further underscore the systemic irregularities and appearance of partiality surrounding this case.

**I. PROCEDURAL DORMANCY AND ARTIFICIAL REVIVAL POST
ADMINISTRATIVE ORDERS**

1. This case remained entirely dormant for over three years after remand from the U.S. Court of Appeals and Defendant's filing of his **Motion to Strike the Complaint as a Sham.**

2. During that time, two separate administrative orders were issued by this Court, including:
- **Administrative Order 2022-19**, titled *Administrative Closing of Inactive Reopened Civil Cases*, which instructed closure of reopened civil cases showing prolonged inactivity two years after remand;
 - A subsequent administrative closure order issued a little over a year later with similar purpose.
3. Plaintiffs did not act on this case during either closure window. It was only after the second administrative order that Plaintiffs abruptly reactivated the litigation—after having allowed it to remain inactive under their watch for years.
4. Defendant respectfully submits that had the Court applied its own stated administrative policies with impartiality and consistency, this matter should have been closed and dismissed long before now, and certainly before default was entered against a pro se Defendant unable to appear in person due to verified physical and financial incapacity.

II. PRIOR JUDICIAL HANDLING OF A RELATED CASE AND PREJUDICIAL POSITIONING REGARDING TOKE OIL AND GAS S.A.

5. In a related 2020 case previously presided over by the current judge (*2020 CA 001021: Moszkowski vs Howard and Johnson*), Defendant brought claims against the very principals now appearing as representatives for the Plaintiffs in the present action. That case was dismissed without meaningful adjudication.
6. During a hearing in the 2020 matter, the presiding Judge—without addressing Defendant’s threshold concern that Toke Oil and Gas S.A. could not be sued or named as a Defendant absent proof of legal existence and foreign domicile—suggested instead that Defendant ought to sue DeepGulf and Toke themselves rather than their officers.
7. Defendant responded that such a lawsuit was legally impossible in the absence of **(a)** demonstrable evidence that Toke existed as a valid legal entity, and **(b)** a valid, verifiable foreign domicile capable of sustaining jurisdiction. No answer or clarification was provided by the Court.
8. In effect, the Court implicitly endorsed the Plaintiffs’ fictitious claims regarding Toke’s legal existence and foreign status—claims now

revived in this very case to destroy federal diversity jurisdiction and remand to a state court where the same Judge had already ruled unfavorably against Defendant.

III. APPEARANCE OF BIAS AND ENTRENCHMENT OF NARRATIVE

9. The totality of these procedural events—the long dormancy ignored by administrative orders, the revival timed to avoid dismissal, the return of the case to a judge who previously rejected Defendant’s efforts to seek redress, and the Court’s silence on threshold questions of legal existence and domicile—gives rise to a substantial appearance of procedural entrenchment, if not outright bias.

10. Defendant respectfully submits that under the Florida and U.S. Constitutions, such a posture cannot support the issuance of binding relief under color of law without risking grave violation of due process.

IV. PRIOR INVOLVEMENT BY PRESIDING JUDGE AND FAILURE TO RECUSE DESPITE APPARENT CONFLICT

11. The current presiding judge previously handled the 2020 case in which Defendant, then acting as plaintiff, brought claims against the principals now directing DeepGulf, Inc. and Toke Oil and Gas S.A.—the same entities now suing Defendant here.

12. In that prior action, the Court summarily dismissed Defendant's claims without meaningful review or hearing on the merits, despite the presentation of sworn evidence and procedural objections to the legal status of Toke Oil and Gas S.A.

13. The present case involves not only the same underlying dispute and factual nexus, but now places Defendant in the reverse position—targeted by the very parties he attempted to hold accountable in 2020.

14. The presiding judge has thus ruled against Defendant in both capacities: first as Plaintiff, now as Defendant—despite unresolved factual and legal questions central to both matters.

15. Under Florida law, a judge must recuse herself not only where actual bias exists, but where "the facts would place a reasonably prudent person in fear of not receiving a fair and impartial trial." See *Livingston v. State*, 441 So.2d 1083 (Fla. 1983).

16. The failure to disclose, acknowledge, or voluntarily recuse from this second, materially related proceeding—after presiding over the first—amplifies the appearance of bias and contributes directly to the procedural unfairness now at issue.

WHEREFORE, Defendant respectfully requests that this Court or, alternatively, the Chief Judge of the First Judicial Circuit, take formal

judicial notice of the above circumstances in evaluating any further motion, proposed judgment, or procedural action in this matter.

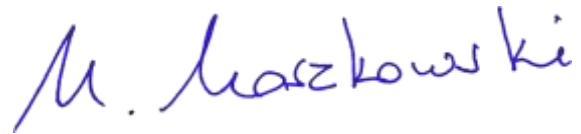
Respectfully submitted this 30th day of June, 2025.

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Le Verdos

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CERTIFICATE OF SERVICE

I hereby certify that, on this 30th day of June, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

